

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2092

By: Menz

AS INTRODUCED

An Act relating to schools; amending 70 O.S. 2021, Section 3-119, which relates to school lunch programs; adding the Healthy, Hunger-Free Kids Act of 2010 to list of apportioned funds; adding definitions; mandating participation in the community eligibility provision for certain schools; requiring schools districts to maximize participation; exempting schools that provide free meals through other means; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 3-119, is amended to read as follows:

Section 3-119. Funds appropriated to the State Board of Education for School Lunch Matching and School Lunch Programs shall be apportioned by the State Board of Education to each school district for the purpose of providing meals for children in compliance with the National School Lunch Act ~~and~~, the Child Nutrition Act of 1966 ~~and~~, Public Law 91-248, and the Healthy, Hunger-Free Kids Act of 2010, as they may hereafter be amended or supplemented.

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 3-119.2 of Title 70, unless
3 there is created a duplication in numbering, reads as follows:

4 A. As used in this section:

5 1. "Community eligibility provision" or "CEP" means the
6 alternative reimbursement option for eligible high poverty schools
7 or group of schools as authorized by the Healthy, Hunger-Free Kids
8 Act of 2010, Pub. L. 111-296;

9 2. "Enrolled students" means students who are enrolled in and
10 attending schools participating in the community eligibility
11 provision and who have access to at least one meal service daily;

12 3. "Identified student" means any student who is directly
13 certified for free meals through means other than the use of an
14 individual household application, including, but not limited to, any
15 student who is directly certified for free meals based on the
16 student's participation in the Supplemental Nutrition Assistance
17 Program (SNAP), Temporary Assistance for Needy Families (TANF), and
18 Food Distribution Program on Indian Reservations and any homeless
19 child, runaway child, migrant child, or Head Start student, or any
20 foster child, who is approved as categorically eligible for free
21 meals by means other than a meal application;

22 4. "Identified student percentage" means the fraction,
23 expressed as a percentage, that results from dividing the number of
24 identified students enrolled in a school or group of schools by the

1 total number of students enrolled in such school or group of
2 schools; and

3 5. "School" means any public, charter, or private school that
4 meets community eligibility provision criteria.

5 B. Each school or group of schools that has an identified
6 student percentage of at least twenty-five percent (25%), or an
7 identified student percentage of less than twenty-five percent (25%)
8 if authorized by federal law, as determined annually by April 1,
9 shall participate in the community eligibility provision in the
10 subsequent school year and throughout the duration of the community
11 eligibility provision's four-year cycle.

12 C. School districts, to the extent practicable, shall group
13 schools for purposes of maximizing the number of schools eligible to
14 participate in the community eligibility provision. Individual
15 schools participating in a group may have less than twenty-five
16 percent (25%) of identified students, provided the average
17 identified student percentage for the group is at least twenty-five
18 percent (25%).

19 D. Schools that, through an arrangement with a local entity,
20 provide all meals to all students at no cost to the students shall
21 be exempt from the requirements of this section.

22 SECTION 3. This act shall become effective July 1, 2025.

23 SECTION 4. It being immediately necessary for the preservation
24 of the public peace, health or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

3

4 60-1-10812 SW 01/13/25

5

6

7

8

9

10

11

12

13

14

15

16

17

18

19

20

21

22

23

24